

recent bankruptcy filing of Defendant. No appearance is required on March 11, 2026.

11. 9:00 AM CASE NUMBER: C23-02906

CASE NAME: KATELYN SCHAEFER VS. BRYAN DOVE

***HEARING ON MOTION IN RE: SET ASIDE SANCTIONS ORDER AND TO ENFORCE MEDIATED SETTLEMENT AGREEMENT**

FILED BY:

TENTATIVE RULING:

Summary

There are two motions on calendar in the case *Katelyn Schaefer v. Bryan Dove*. This ruling relates to Line 11, which is Defendant Roger Boaz's ("Boaz") Motion to Set Aside Sanctions and to Enforce the Mediated Settlement Agreement filed on November 13, 2025, Line 11. The Court **denies** Defendant Roger Boaz's Motion to Set Aside Sanctions and Enforce Mediated Settlement Agreement.

For Defendant Roger Boaz's Motion for Sanctions Against Opposing Counsel filed on November 13, 2025, see tentative ruling on Line 12, below.

Background

This case presents a complex history of procedural actions taken by Defendant Dove and Cross-Defendant Boaz. In summary, in this litigation, Plaintiff Katelyn Schaefer ("Plaintiff"), who was 16 years old at the time, attended a party on May 26, 2023 at the residence of Defendant Bryan Dove ("Dove") and David Dove in Discovery Bay, California. Plaintiff alleged that at the party, Defendants served alcohol to minors, including to Plaintiff. The complaint further alleged that Defendants provided Katelyn Schaefer with multiple alcoholic drinks, to the point of severe intoxication. As a result, Katelyn Schaefer suffered a fall, hit her head, sustained a cut above her left eyebrow, and lost consciousness. Subsequently as a result of her injuries, Katelyn Schaefer was transported by helicopter ambulance to a trauma center. Ms. Schaefer was treated and was ultimately diagnosed with alcoholic intoxication, concussion with loss of consciousness, laceration of left eyebrow, and acute hypokalemia. Ms. Schaefer's blood alcohol content was .225 g/dl.

Dove filed a cross-complaint against Boaz on March 18, 2024. The record indicates that Boaz evaded service and Dove filed service by publication. On July 21, 2024, Boaz made an appearance through Notice and Acknowledgement of Receipt of Summons and Cross-Complaint, but failed to reply to the cross-complaint. Dove entered a default against Boaz on September 5, 2024. On October 23, 2024, the Court conditionally set aside the default against Boaz. Boaz filed an amended cross-complaint against Dove. The case became at issue after resolution of a series of procedural skirmishes regarding the operative pleadings. In the intervening period, the parties arrived at a settlement agreement with Plaintiff on October 9 2025.

On November 12, 2025, at a hearing on Dove's discovery motion, the Court granted Dove's Motion to Compel Boaz to Respond to Request for Production of Documents, Set One, and for Monetary Sanctions in the amount of \$2,307.50; and also granted Dove's Motion to Compel Boaz to provide Further Responses to Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Admissions, Set One and for Monetary Sanctions in the amount of \$2,425.00.

On November 13, 2025, Boaz filed this Motion to set aside the sanctions awarded and to enforce the settlement agreement. Boaz's motion was supported by a Memorandum of Points and Authorities and Declaration of Boaz. There is no proof of service accompanying the motion. However, Dove filed a timely opposition on February 26, 2026. "[I]t is well settled that the appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of the motion." *Eliceche v. Federal Land Bank Assn. of Yosemite* (2002) 103 Cal.App.4th 1349, 1375. Boaz also filed an *ex parte* application to request to stay enforcement of the sanctions, but the Court denied that application because Boaz failed to properly provide notice.

In this motion, Boaz claims that the discovery motion sanctions imposed against him on November 12, 2025 should be set aside because he had a mistaken belief that the mediation on October 9, 2026 resolved all matters, including the pending discovery motion. He asserts that Cal. Code of Civ. Proc. § 473 allows him to claim relief through mistake or error. He also claims that his refusal to execute a settlement agreement was not necessary, and that the Court should enforce the settlement agreement.

On February 26, 2026, Dove filed an opposition to the Motion asserting the following arguments: Boaz had approximately five months to draft and file an opposition to Dove's discovery motions which were the subject of the November 12, 2025 hearing. Accordingly, Dove can hardly argue that his failure to do the same was due to mistake, inadvertence, surprise, or excusable neglect that is contemplated under Code of Civil Procedure section 473, subdivision (b). Moreover, Boaz's was mistaken in his erroneous belief that Boaz's withdrawal of the cross-complaint against Dove somehow resulted in a withdrawal of the discovery motions pending against him. Since Boaz must be held to the standard of an attorney practicing before the Court, this assumption is not reasonable.

Analyses

Self-Represented Litigant

The Court is aware that Boaz is proceeding without an attorney in this lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, "[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' [Citation.] When one party has counsel and the other does not, the trial court 'should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the

represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.” *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Plaintiff was misled by the Court or Defendants.

Boaz Does is Not Eligible for Relief under Section 473:

Under Code of Civil Procedure § 473(b), the Court has discretion to relieve a party or the party’s legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect.

Under this section, the Court must consider whether the mistake is excusable. When seeking relief under Cal. Code Civ. Proc. § 473(b) based on mistake, a litigant must generally demonstrate that the mistake was excusable. See *Ron Burns Constr. Co. v. Moore*, (2010) 184 Cal. App. 4th 1406, 1414.

Moreover, “Excusable neglect,” for purposes of section 473, subdivision (b) exists when a reasonably prudent person in similar circumstances might have made the same error. *County of San Bernardino v. Mancini* (2022) 83 Cal.App.5th 1095, 1103.

And, the “inadvertence” contemplated by Section 473(b) does not mean mere inadvertence in the abstract; if it is wholly inexcusable it does not justify relief. *Younessi v. Wolf* (2016) 244 Cal.App.4th 1137, 1147. Inadvertence is a lack of attentiveness, inattention, or fault from negligence. See, e.g., *Dingwall v. Vangas, Inc.* (1963) 218 Cal. App. 2d 108, 113). As with mistake, inadvertence does not warrant relief unless, on consideration of all the evidence, it is excusable. See *Martin v. Taylor*, (1968). 267 Cal. App. 2d 112, 113. Therefore, the moving party must supply the court with reasons for the inadvertence.

Here, the Court must apply the rules of litigation equally to Boaz. A self-represented party, Boaz must be held to “the same restrictive procedural rules as an attorney” and he is “not entitled to special treatment and are [is] required to follow the procedural rules that govern civil litigation.” *McComber v. Wells* (1999), *supra*, 72 Cal.App.4th 512 at 522-523. Applied here, Boaz does not provide the Court with any facts that support that his failure to timely oppose the discovery motion was the result of mistake, inadvertence or neglect that was excusable. He was served with the discovery motions on May 22, 2025. The hearing for the motion was November 12, 2025. Boaz failed to file a timely opposition to the original discovery, despite the five months between motion and the hearing. He cannot now reasonably argue that a dismissal of his cross-complaint operates to dismiss a pending discovery motion. Nothing in the Code of Civil Procedure or the California Rules of Court support this conclusion.

Boaz does not demonstrate that his failure to oppose the discovery motion was the result of mistake, or inadvertence. He was properly served with notice of the motion. He failed to timely file an opposition to the discovery motion. He did not seek leave to file a late opposition. He did not file a motion for reconsideration under Cal. Code of Civ. Proc. § 1008, et. seq. These remedies were available to him, but he chose not to employ relief provided by the law. Held to the standard of a

litigant practicing before the Courts, he cannot now, avail himself of a motion to set aside these sanctions.

The Court finds credible Dove's arguments that Boaz could not have believed that Mr. Dove's discovery motions were withdrawn. Indeed, Boaz was informed by Dove's counsel on October 15 and 16, 2025 that he execute an amended settlement agreement because of his refusal to comply with the parties' settlement agreement. The letter further informed Boaz that his opposition to the motion for further responses was due on October 20, 2025. Boaz knew or should have known that the case, and the motion, was ongoing even after he withdrew his cross-complaint (without prejudice). Held to the standard of It is unreasonable to assume that the withdrawal of a cross-complaint results in Dove's withdrawal of a pending discovery motion. Thus, Boaz does not have grounds for excusable neglect.

The issue of enforcing the mediated settlement agreement is already on calendar for March 18, 2026. In order to preserve judicial resources, the Court defers this issue to hearing of that motion.

Ruling

Defendant Roger Boaz's ("Boaz") Motion to Set Aside Sanctions and Enforce Mediated Settlement Agreement filed on November 13, 2025 is **denied**. Sanctions in the amount of \$2,307.50 and \$2,425.00 and are due within ten (10) days to Dove's counsel.

Dove's counsel shall prepare a proposed order conforming to this ruling and shall file it no later than five (5) days from the date of this hearing, attaching a copy of this tentative ruling.

12. 9:00 AM CASE NUMBER: C23-02906

CASE NAME: KATELYN SCHAEFER VS. BRYAN DOVE

***HEARING ON MOTION IN RE: FOR SANCTIONS AGAINST OPPOSING COUNSEL FOR BAD FAITH CONDUCT**

FILED BY:

TENTATIVE RULING:

Summary

Defendant Roger Boaz ("Boaz") filed a Motion for Order Imposing Sanctions Against Opposing Counsel, Kevin Hermanson is **denied**.

Background

See Line 11 for procedural background, which is incorporated herein. On November 13, 2025, Defendant Roger Boaz ("Boaz") filed a Motion for Order Imposing Sanctions Against Opposing Counsel for Defendant Bryan Dove ("Dove"), Kevin Hermanson, pursuant to Cal. Code of Civ. Proc §§ 128.5 and 2023.030 asserting that Mr. Hermanson conducted bad faith litigation tactics, including coercion, misrepresentation and abuse of process. This motion was supported by a Memorandum of Points and Authorities and Declaration of Boaz. There is no proof of service accompanying the motion. However, Dove filed a timely opposition on February 26, 2026. "[I]t is well settled that the appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of the motion. *Eliceche v. Federal Land Bank*